UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF CALIFORNIA

STANDING ORDER FOR ALL CIVIL CASES BEFORE DISTRICT JUDGE NOËL WISE

A. Conformity with Rules

The parties must follow the Federal Rules of Civil Procedure, the Civil Local Rules, and the General Orders of the Northern District of California, except as superseded by this Court's standing orders.

B. Service of This Order

Within five days of the filing of the complaint, the reassignment of a case to this Court, or the addition of a new party, the plaintiff must serve on all parties a copy of this order and the Standing Order for All Judges of the Northern District of California: Contents of Joint Case Management Statement.

C. Court Schedule

All civil motions must be noticed for a hearing in accordance with Civil Local Rule 7-2(a) except: (1) motions for leave to appear *pro hac vice*; (2) motions to enlarge or shorten time pursuant to Civil Local Rule 6-1; and (3) motions for administrative relief pursuant to Civil Local Rule 7-11. The Court does not hold hearings for these administrative motions.

Judge Wise hears civil motions ***by reservation only*** on Wednesdays at 9:00 a.m., in Courtroom 3, 5th Floor, United States District Court, 280 South First Street, San Jose, California.

Parties must consult Judge Wise's weekly calendar and scheduling notes, available at https://www.cand.uscourts.gov/judges/wise-noel-nw/, for the most recent information regarding when and where hearings will be held. After reviewing the website, counsel or unrepresented parties shall meet and confer to identify mutually agreeable dates. Parties shall jointly contact Judge Wise's Courtroom Deputy, Allie Warren, at (408) 535-5332 or nwcrd@cand.uscourts.gov to reserve a hearing date. When reserving a hearing date, parties must inform Ms. Warren of the number and type(s) of motions to be filed.

No party will be given reservations for more than two motions without leave of Court, nor will the Court hear more than two motions per party at a particular hearing without leave of Court or a Court Order. Any party wishing to exceed this limit must file a motion with the Court and demonstrate good cause for the request.

Once a party reserves a hearing date, the party shall file their motion(s) no later than three business days (Saturdays, Sundays, and court holidays are excluded) following the date of the reservation confirmation email. If a party fails to timely file any motion, the hearing reservation

will expire without further notice to the parties, and the moving party must obtain a new reservation before filing the motion(s).

No party shall file a motion without first obtaining a hearing date as described above. Any motion filed without a reserved hearing date will be stricken from the docket by the Court, and the party may not refile until they obtain a reservation from the Courtroom Deputy.

The Court may reset noticed hearing dates as its calendar requires. The Court may determine a matter is suitable for disposition without oral argument and vacate the hearing on the matter.

Case management conferences are held on Tuesdays at 9:00 a.m. If a matter is set for a hearing, the Court may elect to hold a case management conference in conjunction with that hearing.

The Court conducts pre-trial hearings on Wednesdays at 2:00 p.m.

Bench and jury trials commence on Mondays at 9:00 a.m. and continue through Thursday of each week. Depending on the projected length of the trial, the Court will utilize a 4.5 hour, half day schedule (9:00-1:30 with two 15-minute breaks), or a 6.5 hour, full-day schedule (9:00-4:30 with a thirty-minute lunch break, and two 15-minute breaks, one in the morning and one in the afternoon).

All filing deadlines are at 5:00 p.m. unless otherwise ordered.

D. Remote Hearings

The Court holds case management conferences via Zoom webinar unless otherwise noted. All other hearings before the Court shall be held in person unless otherwise noted or if leave is granted.

Parties wishing to appear via Zoom shall file and serve an administrative request to appear via Zoom and a proposed order at least one week prior to the scheduled hearing date. If all parties wish to appear via Zoom, the parties should file a joint administrative request or indicate that the request is unopposed. If a request is granted, the parties must follow the directions provided on the Court's website for remote participation (https://www.cand.uscourts.gov/wise-noel-nw/). To ensure the quality of the record, any party appearing remotely must have a good connection and must avoid participating from a public space or any other environment with background noise that could disrupt the proceedings.

E. Invitation to Self-Identify Pronouns and Honorifics

Litigants and lawyers are invited to indicate their pronouns or honorifics by adding the information in the name block or signature line of a court filing or informing the Court when making an appearance.

F. Joint Case Management Statement and Initial Case Management Conference

Parties are required to file a joint case management statement not less than eighteen (18) calendar days before a scheduled case management conference, unless the Court sets a different deadline. Parties shall not deliver courtesy copies of their joint case management statement to the Court unless requested.

Unless otherwise ordered, the parties' statement must comply with the terms of the Standing Order for All Judges of the Northern District of California: Contents of Joint Case Management Statement and Civil Local Rule 16-9. Parties must not incorporate prior case management statements by reference. In addition, parties must include a brief statement as to why or whether Plaintiffs have standing to bring their case.

In their joint case management statement for the initial case management conference, the parties must propose a full litigation schedule, including a deadline to complete ADR, regardless of whether they have received a ruling on any motion to dismiss. Parties must select one of the forms of ADR listed in the chart below. Target dates and deadlines are set forth below, including ranges to account for the complex nature of the case. Parties must explain proposals that deviate from the timeline set forth below.

The Court may vacate a case management conference and issue a Case Management and Pretrial Order.

Case Stage	**Deadline**
Close of Fact Discovery	241 days before trial
Deadline to Complete ADR: [ ] Court-sponsored mediation [ ] Court-sponsored ENE [ ] Mag. Judge Settlement Conf. [ ] Private mediation [ ] Private arbitration [ ] Other:	Approximately 220 days before trial
Opening Expert Reports	213 days before trial
Rebuttal Expert Reports	185 days before trial
Close of Expert Discovery	164 days before trial
Deadline to File Dispositive/*Daubert* Motions	143 days before trial

Hearing on Dispositive/*Daubert* Motions and Trial Readiness Conference	89 days before trial
Joint Pretrial Conference Statement	33 days before trial
Pretrial Conference	19 days before trial
Trial	Within 12 to 20 months of the initial case management conference

In the section of the joint case management statement addressing "Other References," the parties must indicate whether all parties consent to the jurisdiction of a magistrate judge.

G. Electronically Stored Information

Parties must review in detail the Northern District's electronically stored information ("ESI") guidelines and checklist for Rule 26(f) conferences, which are available at https://cand.uscourts.gov/eDiscoveryGuidelines. The Court discourages deviation from the ESI guidelines absent good cause. Failure to meet and confer regarding the required topics prior to the initial case management conference, including alternative dispute resolution and ESI, may, in the reasonable exercise of the Court's discretion, result in sanctions or disciplinary action.

H. Stipulated Protective Orders and Orders Re: Discovery of Electronically Stored Information (ESI)

Parties who seek a protective order or order re: discovery of ESI must, where practicable, use one of the model stipulated orders available at https://cand.uscourts.gov/model-protective-orders or https://cand.uscourts.gov/eDiscoveryGuidelines. Parties must file one of the following with any proposed protective order or order re: discovery of ESI: (a) a declaration stating that the proposed order is identical to one of the model orders except for the addition of case-identifying information or the elimination of language denoted as optional; (b) a declaration explaining each modification to the model order, along with a redline version comparing the proposed order with the model order; or (c) a declaration explaining why use of one of the model orders is not practicable. Proposed orders that are not accompanied by one of the required declarations will be denied without prejudice.

I. Discovery Matters

Discovery in all cases will be referred to a magistrate judge. The parties must follow the magistrate judge's procedures. Case scheduling orders will not be shifted to accommodate pending discovery motions. Parties are advised to file discovery motions in a timely manner.

J. Motions to Seal

Parties are reminded that court proceedings are presumptively public, and no document shall be filed under seal without request for a court order that is narrowly tailored to cover only the document, the particular portion of the document, or the category of documents for which good cause exists for filing under seal.

Motions to seal documents shall be filed in accordance with Civil Local Rule 79-5. In addition, each administrative motion filed pursuant to Civil Local Rule 79-5(c) and declaration filed pursuant to Civil Local Rule 79-5(f)(3) shall include a chart, in the format set forth below, which includes the following four columns: (1) ECF number of the document sought to be sealed; (2) description or name of the document sought to be sealed; (3) portion(s) of the document to seal; and (4) reason(s) why the document should be sealed, including citation to the applicable declaration. Each separate document for which sealing is sought shall have its own row in the table.

ECF No.	Document Title	Portion to be Sealed	Basis for Sealing

Each administrative motion filed pursuant to Civil Local Rule 79-5(c) and declaration filed pursuant to Civil Local Rule 79-5(f)(3) shall be submitted in Word format by email to nwpo@cand.uscourts.gov on the same day of filing.

Electronic courtesy copies of sealed documents are required when a filed document consists of multiple parts and includes more than one part sought to be filed under seal—for example, a declaration with six exhibits, three of which are sought to be filed under seal. Parties must submit a single PDF of the entire document either by (a) following the instructions for Uploading Digital Exhibits available at https://cand.uscourts.gov/attorneys/attorney-practice-resources, using the "Chambers Copies ONLY" Case Type, and selecting the "SEALED" dropdown in the box under "Case Name" or (b) contacting the Courtroom Deputy at nwcrd@cand.uscourts.gov to arrange a different method of delivery (e.g., sharing a secured file link).

Each exhibit must be bookmarked, and sealed material or material sought to be filed under seal must be highlighted. Where possible, the PDF must bear the ECF stamp (case number, document number, date, and page number) at the top of each page.

K. Motions for Summary Judgment

Absent good cause, the Court will consider only one motion for summary judgment per party and only two *Daubert* motions per party. Any party wishing to exceed these limits must request leave

of court and must show good cause. The Court construes "party" in this context to include affiliates.

Parties are ordered in their Case Management and Pretrial Order, *see above* Section F, to file their dispositive and *Daubert* motions by a set deadline. The parties are also provided a set hearing date for those motions. If the parties seek to file a motion for summary judgment sooner than the deadline, and accordingly request an earlier hearing date, the parties must follow the Court's standard procedure for reserving a hearing date and noticing the motion (*see above* Section C).

Parties must clearly identify, on the first page of their motion, those claims for which they are seeking summary adjudication or summary judgment.

Unless otherwise ordered, the parties must meet and confer to determine if they will file cross-motions for summary judgment. If so, only four briefs will be allowed: (1) opening brief by the plaintiff side; (2) opening/opposition brief by the defense side; (3) opposition/reply brief by the plaintiff side; and (4) reply brief by the defense side. The parties may agree to reverse the order, and have the defense file its opening brief first, without order of the Court. The first two briefs are limited to 25 pages; the third brief is limited to 20 pages; and the fourth brief is limited to 15 pages. Before the first brief is filed, the parties must submit a stipulation and proposed order setting a briefing schedule for the cross-motions. The fourth brief must be filed at least 21 days before the hearing date.

Opening Statement of Undisputed Material Facts ("SUMF"): Any party moving for summary judgment, partial summary judgment, or summary adjudication must include a separate, short and concise statement identifying each claim or defense to which the moving party contends there is no genuine issue to be tried. In most cases, the Opening SUMF should not exceed fifteen (15) pages. For each claim, defense, or part thereof, the Opening SUMF must: (a) identify the relevant elements or issues; (b) list the asserted material facts establishing those elements or issues; and (c) cite to record evidence demonstrating that the asserted material facts are undisputed (e.g., deposition testimony, declaration, or discovery response). Upon filing, the moving party shall provide the Opening SUMF to all other parties in Microsoft Word format for ease of response thereto. The Opening SUMF must be organized in the form of a chart as shown in Attachment A.

Responsive SUMF: The papers opposing a motion for summary judgment, partial summary judgment, or summary adjudication must include a Responsive SUMF which: (a) incorporates the Opening SUMF; (b) indicates whether each of the facts listed in the Opening SUMF is disputed or undisputed; and (c) identifies any additional material facts the party contends will establish a genuine issue to be tried. If the opposing party contends that a fact is in dispute, the opposing party must cite to evidence in the record establishing the dispute.

In most cases, the Responsive SUMF should add no more than five (5) pages to the Opening SUMF. The Responsive SUMF must be organized in the form of a chart as shown in Attachment A.

Reply SUMF: The moving party may file a Reply SUMF which incorporates and responds to the Responsive SUMF in the same manner described above. The Reply SUMF shall not introduce any new asserted material facts.

Deemed Admitted Unless Controverted: Each numbered fact in the Opening SUMF will be deemed to be admitted, for purposes of the motion only, unless specifically controverted by the opposing party, so long as the moving party meets its burden under Federal Rule of Civil Procedure 56.

Attestation: Each separate SUMFs must be signed by counsel or unrepresented party who has reviewed the document and attests as follows: I attest that the evidence cited herein fairly and accurately supports or disputes the facts as asserted.

Additional Guidance: The separate SUMFs shall not include argument in support of the summary judgment motion and shall not be used to circumvent the page limits that apply to summary judgment briefing. Parties must include only those facts that are actually cited in the briefs. Facts that are not cited in the summary judgment briefs will not be considered.

Objections to Evidence: Objections to evidence shall be contained within the objecting party's brief and shall not be filed as a separate pleading.

L. Cross-Motions under Rule 52 of the Federal Rules of Civil Procedure

If parties intend to resolve a case under cross-motions for judgment brought under Rule 52 of the Federal Rules of Civil Procedure, they must follow the same briefing and scheduling guidelines set forth above regarding cross-motions for summary judgment.

M. Motions for Attorney's Fees

In addition to the motion, memorandum, and evidence, a party moving for attorney's fees must provide the Court with a chart, in the format set forth below, summarizing the hours expended on the major tasks in the case. While the Court has suggested several categories of tasks, the moving party may add or modify categories as necessary. The Court is primarily interested in the number of hours spent per task and per attorney, along with the effective billing rate associated with those hours. The total number of hours reflected in this chart must be identical to the number of hours set forth in the fees motion.

Electronic copies of the chart must be sent in Word format to nwpo@cand.uscourts.gov

Task	Atty A	Atty B	Atty C
Billing Rate			
Compl. and Pre-Compl. Investigation			
Discovery			
Motion Practice (specify motion)			
Settlement Efforts			
Client Communication			

Miscellaneous (describe)			
Total Hours			

N. Class Action Settlements

Any motion for preliminary or final approval of a class action settlement must address the respective guidelines in the Northern District of California's Procedural Guidance for Class Action Settlements, available at https://cand.uscourts.gov/forms/procedural-guidance-for-class-action-settlements/, in the order the guidelines are presented on the website.

As reflected in the Guidance, the Court will require a post-distribution accounting within 21 days after the distribution of settlement funds. In addition to the information contained in the Guidance, the post-distribution accounting must discuss any significant or recurring concerns communicated by class members to the settlement administrator or counsel since final approval, any other issues in settlement administration since final approval, and how any concerns or issues were resolved.

The Court will typically withhold between 10% and 25% of the attorney's fees granted at final approval until after the post-distribution accounting has been filed. The final approval motion must specify what percentage class counsel believes it is appropriate to withhold and why. Class counsel must file a proposed order releasing the remainder of the fees when they file their post-distribution accounting.

O. Patent Cases

1. Joint Claim Construction Statement

The joint claim construction statement required by Patent Local Rule 4-3 must include a chart, in the format set forth below, listing each disputed term, phrase, or clause (by claim); each party's proposed construction; and support for each party's proposed construction side by side.

Electronic copies of the chart included in the joint claim construction statement must be sent in Word format to nwpo@cand.uscourts.gov.

'xxx Patent Claim Language	**Patent Owner's Proposed Construction and Evidence in Support**	**Accused Infringer's Proposed Construction and Evidence in Support**

1. "A method for counting **ducks**, comprising the steps of: . . ." *[or alternatively*] **ducks** Found in claim numbers: 'xxx Patent: y, z	PROPOSED CONSTRUCTION: **duck:** a bird that quacks DICTIONARY/TREATISE DEFINITIONS: Webster's Dictionary ("duck: bird that quacks"); Field Guide ("bird call: quack") INTRINSIC EVIDENCE: 'xxx Patent col. _:___ ("distinctive honking"); Prosecution History at ___ ("This patent is distinguished from the prior art in that the quacking of the bird is featured"). EXTRINSIC EVIDENCE: McDonald Depo. at xx:xx ("I'd say the quacking makes it a duck"); ' 123 Patent at col _:_; Donald Decl. at ¶ ___.	PROPOSED CONSTRUCTION: **duck:** a bird that swims DICTIONARY/TREATISE DEFINITIONS: Random House Dictionary ("An aquatic bird"); Field Guide (same) INTRINSIC EVIDENCE: 'xxx Patent col _:___("ducks may be found on or near bodies of water"); Prosecution History at __("water fowl are particularly amenable to being counted by this method"). EXTRINSIC EVIDENCE: G. Marx Depo at xx:xx ("like a duck to water"); ' 456 Patent at col _:__; Daffy Decl. at ¶ __.

2. Courtesy Copies of Claim Construction Materials

To assist the Court with claim construction, the patent owner shall deliver to the Court two hard copies of all claim construction materials, including the joint claim construction statement, opening claim construction brief, responsive claim construction brief, and reply claim construction brief. The patent owner shall also include two hard copies of the patents in dispute.

Two binders containing the hard copies, printed double-sided and in color, shall be delivered to the Clerk's Office (Clerks Office, 2nd Floor, 280 South 1st Street, San Jose) no later than seven (7) days before the technology tutorial or sixteen (16) days before the claim construction hearing, whichever is earlier.

P. Private Securities Litigation Reform Act ("PSLRA") Cases

The PSLRA requires the Court to appoint a lead plaintiff and lead counsel in any cases brought under the statute. *See* 15 U.S.C. § 78u-4(a)(3). If and when a lead plaintiff files an amended complaint, lead plaintiff must set out in chart form its securities fraud allegations under the following headings on a numbered, statement-by-statement basis: (1) the speaker(s), date(s), and medium; (2) the false and misleading statements; (3) the reasons why the statements were false and misleading when made; and (4) the facts giving rise to a strong inference of scienter. An exemplar can be found at *In re SVB Financial Group Securities Litigation*, No. 5:23-cv-01097-

NW, ECF Nos. 88-1 and 88-2. The chart may be attached to or contained in the consolidated complaint, but in any event will be deemed to be a part of the complaint.

Q. Skills Development

The Court welcomes and encourages oral argument by less-experienced attorneys on any matters argued before the Court.

R. Requests to Extend Deadlines or Continue Hearing Dates

Parties seeking to modify a Court ordered deadline or a deadline set by Federal or local rules must explain "with particularity the reasons for the requested enlargement." Civ. L.R. 6-2(a). Requests to extend deadlines or continue hearing dates will generally only be granted if: (a) the request maintains the number of days between when the reply brief is due and the date of the hearing; (b) the requesting party has demonstrated that there is good cause (*e.g.*, an unforeseen emergency); and (c) the time extension is narrowly tailored to address the good cause. Good cause includes if the parties attest they have reached a complete, written settlement agreement, not a settlement in principle.

Any request must be filed at least three business days prior to the deadline or hearing sought to be extended or continued. If the request is made by administrative motion rather than stipulation, any opposition must be filed (a) no later than 12:00 p.m. one business day before the deadline or hearing in question or (b) within the time allowed by Civil Local Rule 7-11, whichever is sooner.

S. Briefing and Filing Guidelines

1. Requests to Enlarge Page Limits

Requests to enlarge page limits will rarely be granted, but any such requests must be filed at least three business days prior to the filing deadline. If the request is made by administrative motion rather than stipulation, any opposition must be filed (a) no later than 12:00 p.m. one business day before the deadline in question or (b) within the time allowed by Civil Local Rule 7-11, whichever is sooner.

2. Footnotes

Footnotes are often unnecessary and must be employed sparingly. When used, they must appear in no less than 12-point type. Excessive footnotes will be disregarded.

3. Citations

The Court prefers Westlaw citations for unpublished opinions that are not included in the Federal Supplement, Federal Rules Decisions, or the Federal Appendix.

4. Format of Electronic Filings

Electronically filed documents must be text-searchable PDFs whenever possible. This requirement is waived for self-represented litigants who are proceeding without a lawyer.

5. Visual Aids

Where appropriate, charts, graphs, or other visual aids can be helpful to the Court. The parties are encouraged to incorporate such visual aids in briefing or as attachments to briefs so long as it does not cause a party to exceed their page-limit.

6. Amended Pleadings

If a party files an amended pleading, they shall concurrently file a redlined or highlighted version comparing the amended pleading to the prior operative pleading. Parties must show their changes in-line, not in text bubbles.

7. Courtesy Copies and Proposed Orders[1]

The parties are required to submit **two** courtesy copies of (1) electronic media that is manually filed, (2) pretrial filings, including papers associated with motions *in limine*, (3) all briefs that exceed 10 pages; and, (4) all supporting materials for dispositive motions, *Daubert* motions, motions for class certification or approval of a class settlement, and motions to seal. The Court may request courtesy copies of other documents but discourages their unsolicited submission.

Courtesy copies must be lodged with the Clerk's office in San Jose and must be double-sided and three-hole-punched at the left margin. Courtesy copies of e-filed documents must bear the ECF stamp (case number, document number, date, and page number) on the top of each page. Side tabs, rather than bottom tabs, must be used to separate exhibits.

If the filing includes exhibits over two-inches thick, the parties shall provide the courtesy copies in a binder. The quality, condition, and labeling of binders, when used, must be such that the Court can easily identify, review, and transport the binders' contents. Whenever possible, the spine of a binder should not exceed three inches in width, even if that limitation results in the use of more than one binder.

Courtesy copies shall be provided to the Court in envelopes, boxes, or other packaging clearly marked with (1) the case name and number, (2) "Judge Wise," and (3) "Courtesy Copy." Courtesy copies shall be mailed for receipt or delivered to the Clerk's Office within **two** court days after the materials are filed.

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[1] This section's requirements are waived for self-represented litigants who are proceeding without a lawyer.

Electronic copies of proposed orders must be sent in Word format to nwpo@cand.uscourts.gov on the day of filing.

8. Electronic Filings After Hearings or Case Management Conferences

Any materials used during a hearing or case management conference shall be electronically filed within seven days of the hearing or case management conference.

T. Requests for Settlement Conferences with a Magistrate Judge

The Court receives more requests than it can accommodate for magistrate judge settlement conferences. As a result, with limited exceptions, the Court generally does not refer cases for settlement with a magistrate judge unless the parties have already completed one of the other processes set forth in ADR Local Rule 3-4: Early Neutral Evaluation, Mediation, or Private ADR. Parties who complete one of these processes without reaching a settlement may request referral to a magistrate judge at that time. If the parties believe their case merits an exception to this rule, they should discuss their views in the initial case management statement. If they seek a referral before the initial case management conference, they may file a joint request for an early case management conference.

Dated: October 22, 2026

NOËL WISE
United States District Judge

ATTACHMENT A

Template for Opening SUMF

Claim or Defense	Moving Party's Undisputed Facts & Supporting Evidence	Opposing Party's Response & Supporting Evidence
Claim 3: Breach of Contract		
Issue 1. Plaintiff did not perform under the contract	Fact 1. Defendant issued a homeowner's insurance policy to Plaintiff. Jones Decl. ¶¶ 4-5 and Ex. A (policy).	[Left blank for opposing party's response]
	Fact 2. Plaintiff failed to pay premiums required by the policy. Jones Decl. ¶ 6	
Issue 2. Defendant did not breach the contract	Fact 3. The policy expressly excludes coverage for loss resulting from theft. Jones Decl. ¶¶ 9-10 and Ex. A (policy).	
Punitive Damages		
Issue 1. Plaintiff cannot establish that Defendant acted with oppression, fraud, or malice	Fact 4. Defendant timely investigated Plaintiff's insurance claim. Jones Decl. ¶¶ 18-20.	

Template for Responsive SUMF

Claim or Defense	Moving Party's Undisputed Facts & Supporting Evidence	Opposing Party's Response & Supporting Evidence
Claim 3: Breach of Contract		
Issue 1. Plaintiff did not perform under the contract	Fact 1. Defendant issued a homeowner's insurance policy to Plaintiff. Jones Decl. ¶¶ 4-5 and Ex. A (policy).	Undisputed.
	Fact 2. Plaintiff failed to pay premiums required by the policy. Jones Decl. ¶ 6	Disputed. Plaintiff timely paid the premiums required by the policy. Smith Dep. 22:4-23:19.
	Opposing Party's Additional Material Facts on this Issue	
	Additional Fact 1. Defendant has failed to record Plaintiff's timely premium payments on two prior occasions. Smith Dep. 72:8-14.	[Left blank for moving party's reply]
Issue 2. Defendant did not breach the contract	Fact 3. The policy expressly excludes coverage for loss resulting from theft. Jones Decl. ¶¶ 9-10 and Ex. A (policy).	Disputed. The policy does not exclude coverage for loss resulting from theft. Jones Decl. Ex. A (policy).
Punitive Damages		
Issue 1. Plaintiff cannot establish that Defendant acted with oppression, fraud, or malice	Fact 4. Defendant timely investigated Plaintiff's insurance claim. Jones Decl. ¶¶ 18-20.	Disputed. Defendant waited more than 4 months before investigating Plaintiff's claim. Smith Dep. 79:15-80:4.